

The motion is **granted**. If plaintiff intends to pursue this lawsuit, she must attend the next case management conference (in person, by Zoom, or through new counsel) to state her intentions concerning representation or self-representation. That CMC will also be an order to show cause why the case should not be dismissed for failure to prosecute.

Plaintiff is invited to attend the hearing on this motion if she is aware of it. If she intends to do so, she must notify both the Court and Mr. Starr by telephone call, by no later than 4:00 p.m. today (Tuesday).

Given that Starr's grounds for withdrawal are not confidential and are stated in his motion papers, there is no need for a personal appearance by him for an *in camera* hearing, unless Ms. Galvez gives notice that she will be appearing.

16. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON
HEARING ON DEMURRER TO: RE FIRST AMENDED VERIFIED PETITION FOR WRIT OF MANDATE
FILED BY: TRUMARK HOMES

TENTATIVE RULING:

Petitioner, *in pro per*, filed this action to raise CEQA challenges to two approvals by the City of San Ramon to two amended housing development projects. The merits of those CEQA challenges are not before the Court.

The two real parties in interest in the case, joined by the City, demur to the petition on the ground that petitioner failed to exhaust administrative remedies, because he pursued no administrative appeals to the City Council from the adverse decisions of the Planning Commission. Although the first amended petition reflects that petitioner was aware of the exhaustion requirement, his asserted reasons for failing to do so are legally insufficient.

The demurrer includes an exhaustive, correct, and convincing explanation of the law governing the statutory requirement of exhaustion of administrative remedies, including any available administrative appeals, in CEQA cases. Petitioner has filed no opposition to this demurrer. He thereby effectively acknowledges and admits the correctness of the substance of the demurrer.

The demurrer of the real parties in interest and the City are therefore **sustained without leave to amend**.

18. 9:00 AM CASE NUMBER: MSC20-00575
CASE NAME: STARS HOLDING CO. VS. MEHRABI
***HEARING ON MOTION IN RE: SET ASIDE ORDER GRANTING APPLICATION FOR RIGHT TO ATTACHMENT ORDER AND QUASH THE WRIT OF ATTACHMENT BASED THEREON**
FILED BY: MEHRABI, KARIM

TENTATIVE RULING:

Before the Court is a motion by defendants to set aside the order granting application for right to

attachment order and quash the writ of attachment based thereon. For the reasons set forth, the motion is **denied as moot**.

Background

This action was filed by plaintiff Stars Holding Co. on April 6, 2020. On the same date, Stars Holding filed two applications for right to attach orders seeking writs of attachment against the defendants, Karim Mehrabi and Golam Hossein Baig, each individually and doing business as Aromas 76 and 101 Beacon aka 76 Gas Station. It appears from the Court's Odyssey files that a right to attach order was issued ex parte without a hearing on April 6, 2020. (See 4/6/2020 Rt to Attach Order.) Based on that order, two writs of attachment were issued on April 20, 2020, one against each defendant. There was no opposition to the application.

Plaintiff filed a verified first amended complaint on August 21, 2020, and then on March 21, 2022, an unverified second amended complaint (2AC) which is the operative pleading in the case. Defendants filed an answer to the 2AC on June 9, 2022. Thereafter, between January and June 2023, the Court held two case managements conferences. One CMC was held on February 10, 2023, with CMC statements filed by the parties on January 10, 2023. Another CMC was held on June 27, 2023, with CMC statements filed by the parties on June 5, 2023. The CMC statements are the only filings reflected in Odyssey in this case between January and June 2023.

The case is now scheduled for a court trial on May 4, 2026, preceded by an issue conference set for April 17, 2026, two days after the hearing scheduled on defendants' motion to vacate the attachment, and a trial readiness conference set for April 27, 2026.

Applicable Law and Analysis

The motion seeks to vacate the right to attach order and writs of attachment issued April 6, 2020 and April 20, 2020, respectively. There appears to be no dispute between the parties that those are the operative order and writs at issue.

The Court concludes that an order setting aside the right to attach order and quashing the writs of attachment are unnecessary, because the attachment has been discharged and any property subject to the writs of attachment released from the attachment by operation of law based on the passage of time since they were issued. Code of Civil Procedure section 488.510(a) provides: "Unless sooner released or discharged, any attachment shall cease to be of any force or effect, and the property levied upon shall be released from the operation of the attachment, at the expiration of three years from the date of issuance of the writ of attachment under which the levy was made." (Emphasis added.)

The statute includes procedures for the extension of the right to attach order and writs of attachment. (Code Civ. Proc. §§ 488.510(b), (c), and (d).) Under Code of Civil Procedure section 488.510(b), any motion to extend the writs of attachment had to be filed within a limited time frame before the three-year expiration of the writs under subsection (a) of that statute: "Notwithstanding subdivision (a), upon motion of the plaintiff, made not less than 10 or more than 60 days before the expiration of the three-year period and upon notice of not less than five days to the defendant whose property is attached, the court in which the action is pending may, by order filed prior to the expiration of the period and for good cause, extend the time of the attachment for a period not exceeding one year from the date on which the attachment would otherwise expire." (Emphasis added.)

The Court has reviewed its Odyssey electronic filing system for this case. The Court has not found any

record showing that plaintiff made a motion to extend the writs of attachment or that any order extending the writs of attachment was issued before the expiration of the three-year period following the issuance of the writs of attachment. (Code Civ. Proc. ¶ 488.510(b).) Therefore, by operation of law, the writs of attachment have expired. Because the writs of attachment have expired, there are no writs for the Court to quash and setting aside the right to attach order is unnecessary under the circumstances. The motion is therefore **denied as moot**.

18. 9:00 AM CASE NUMBER: MSL21-01934
CASE NAME: LINDSEY CANNON VS. JUSTOURS, INC., A DELAWARE CORP.
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED COMPLAINT**
FILED BY: CANNON, LINDSEY
TENTATIVE RULING:

This is an alleged class-action suit. In a nutshell, defendant JusTours was in the business of arranging vacation travel (for student spring breaks and the like). Plaintiff alleges that JusTours accepted payment for a large number of such travel plans and then did not deliver the travel. JusTours itself has had its corporate status suspended and is no longer represented by any attorney. Its insurer Scottsdale, however, was granted leave to intervene and now stands as the functional defendant in the case.

Plaintiff Cannon seeks to amend her complaint to add a second alleged class representative, Bautista. The concern here, as Cannon and her counsel candidly acknowledge, is that Cannon has been in a long-term romantic relationship with the son of one of the attorneys serving as class counsel. The plaintiff team is accordingly concerned that there may be problems or disputes with the adequacy of her representation of the class. After investigation to identify other alleged victims of JusTour's wrongdoing, plaintiff has identified Bautista as an additional class representative having no prior connection with Cannon or class counsel.

The motion is **granted**, conditioned on plaintiffs working with defendant for a reasonable stipulated relaxation of the deadlines for a possible summary judgment motion (or, it may be, for an agreement to extend the five-year statute and vacate or move the trial date). Plaintiff may file and serve an amended complaint by the end of this week, April 17. Scottsdale will have 30 days in which to answer. In the meantime, however, plaintiff must live up to its promise to provide all relevant discovery on behalf of Bautista by April 24.

The Conflict Concerns

Scottsdale's initial response amounts to, "what's the big deal?" Scottsdale states that it has no concerns or reservations as to the adequacy of Cannon's representation of the class as class counsel, and hence there is no need to add an additional class representative.

This won't do. The Court has its own independent obligation to ensure the adequacy and independence of a class representative, even if the parties themselves purport to agree on the point. With or without Scottsdales's concession, plaintiff's counsel is quite right in assuming that the Court might well have concerns or reservations as to Cannon's independent capacity to represent the class's interests on such topics as attorney's fees and litigation costs. Conversely, there could be a concern